

		contract, in passing upon the sufficiency of the complaint, [the Court] must accept as correct plaintiff's allegations as to the meaning of the agreement." (<i>Ibid.</i>) "Where a complaint is based on a written contract which it sets out in full, a general demurrer to the complaint admits not only the contents of the instrument but also any pleaded meaning to which the instrument is reasonably susceptible." (<i>Aragon-Haas v. Family Security Ins. Services, Inc.</i>, supra, 231 Cal.App.3d at 239.) The agreement is reasonably susceptible to plaintiff's pleaded interpretation that the attached agreement constitutes the referenced Insertion Order and that the specified fees for the agreed term establish the minimum contract price. That interpretation must be accepted at the pleading stage. This ground for demurrer therefore fails. Lastly, Defendant asserts that Plaintiff has not alleged how the minimum contract price is calculated, "which specific invoices remain unpaid, when the invoice(s) became due, or how the 'remaining owed' column is calculated." (Demurrer: 6:8-11.) However, the Complaint clearly alleges that \$191,306.45 is owed under the Agreement. (¶10 of Complaint.) Moreover, the Complaint attaches a "Statement of Account," which includes Plaintiff's calculations of the amount owed. (¶10 of Complaint and Exhibit C thereto.) Defendant cites no authority which requires any greater specificity in pleading and, consequently, the demurrer is overruled in its entirety.
3.	2025-1521814 Nguyen vs. Nguyen	<i>On the Court's own motion, Demurrer to Amended Complaint is continued to 09/30/2026.</i>
4.	2026-1569037 Santiago vs. Fernandez Viramontes	Defendants Noe Fernandez Viramontes and Florisa Fernandez's motion to strike is denied. Counsel exchanged emails before the motion was filed but did not confer in person, by telephone, or by video conference as required by Code of Civil Procedure section 435.5, subdivision (a). An insufficient meet-and-confer process is not a ground for granting or denying the motion. The Court therefore reaches the merits. (Code Civ. Proc., § 435.5, subd. (a)(4).) A motion to strike may challenge a request for punitive damages unsupported by the pleading. The Court considers the complaint as a whole, assumes the truth of properly pleaded facts, and reads the

allegations in context. Plaintiffs must allege facts supporting punitive damages; merely characterizing conduct as malicious, oppressive, or despicable is insufficient. (Code Civ. Proc., §§ 436–437; *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Today’s IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.)

Civil Code section 3294 permits punitive damages upon proof of malice, oppression, or fraud. Where, as here, plaintiffs do not allege an intent to injure, malice requires despicable conduct undertaken with willful and conscious disregard for others’ rights or safety. The defendant must be aware of the probable dangerous consequences and deliberately fail to avoid them. A showing that the defendant merely should have known of the danger is insufficient. (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 895–896.) Despicability is an additional substantive requirement; negligence, even gross negligence, or recklessness alone does not suffice. (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211–1213.)

Although plaintiffs ultimately must establish malice by clear and convincing evidence, this motion tests the sufficiency of their allegations rather than the strength of their proof.

The complaint alleges that Viramontes knew he had consumed alcohol to the point of intoxication and nevertheless voluntarily drove on Ball Road through a heavily residential corridor at night. It further alleges that he disregarded a red traffic signal, made no attempt to brake or evade, and struck plaintiffs’ stationary vehicle with sufficient force to displace it more than 25 feet into the intersection. At the time, he allegedly intended to continue driving while intoxicated on the SR-57 Freeway toward Corona. (Complaint, p. 6, ¶ EX-2.)

Read together, these allegations sufficiently support an inference of malice. Plaintiffs identify the driver’s alleged knowledge of his intoxication, his deliberate decision to drive despite that condition, the circumstances and manner of his driving, and his intention to continue the trip. These allegations permit an inference that Viramontes consciously undertook driving he knew presented probable dangerous consequences to other road users. His alleged decision to proceed despite known intoxication, considered with the residential setting and the manner of approaching and striking plaintiffs’ stopped vehicle, also supports an inference of despicable conduct. The Court’s conclusion rests on those allegations collectively.

Defendants emphasize the absence of prior DUI convictions, prior intoxication-related accidents, or probationary restrictions. Those circumstances may strengthen a punitive damages claim, but *Taylor*

expressly holds that they are not essential prerequisites. (*Taylor*, supra, 24 Cal.3d at p. 896.) Nor must plaintiffs allege the precise driving maneuvers involved in earlier decisions. Although *Busboom v. Superior Court* (1980) 113 Cal.App.3d 550 involved wrong-way driving, its analysis also emphasizes the amended allegations that the driver knew of the danger he created and deliberately failed to avoid it. (Id. at pp. 552–553, 555.) Here, the complaint expressly alleges knowledge of intoxication and a voluntary decision to drive, together with the surrounding circumstances supporting the claimed conscious disregard.

Defendants also rely on *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, 89–90, which distinguishes foreseeable injury from probable injury and explains that intoxication or traffic violations, without more, do not establish malice. The Court applies that distinction. *Dawes* does not, however, make its particular combination of extreme speed, weaving through traffic, and a crowded recreation area the minimum factual showing in every case. The allegations here must be evaluated together under section 3294 and *Taylor*.

The Court does not adopt plaintiffs’ characterization of every alleged circumstance as independently establishing malice. Driving “at or above” a posted 40-mile-per-hour limit does not necessarily allege extreme speeding. The collision’s severity and the photographs do not independently establish Viramontes’s state of mind. Nor does the alleged DUI guilty plea conclusively establish malice under section 3294. These limitations do not defeat the reasonable inferences arising from the complaint as a whole.

Defendants separately request removal of all references to intoxication from the second cause of action. Those allegations are relevant to plaintiffs’ negligence and negligence per se theories, including the alleged violations of Vehicle Code section 23152, subdivisions (a) and (b). Defendants identify no basis for striking them as irrelevant or improper, regardless of whether punitive damages ultimately are recoverable.

The Court construes the punitive damages request as directed solely against Viramontes, the defendant expressly identified in paragraph EX-1 of the exemplary damages attachment. This ruling does not authorize a punitive damages claim against Florisa Fernandez.

Judicial notice of the criminal case summary and map attached as exhibits C and D to the Gomez declaration is denied as unnecessary to resolution of this motion. The Court’s determination rests on the existing complaint, including its attached photographs, and does not

		depend on additional factual assertions or anticipated discovery described in counsel's declaration. Defendants shall give notice.
5.	2024-1391396 Marshall vs. Volkswagen Group of America, Inc.	Plaintiff Krystian Marshall's motion for attorney's fees is granted in part. <u>Fees</u> The Court begins with the lodestar: the number of hours reasonably expended multiplied by a reasonable hourly rate. The reasonable rate is the prevailing community rate for comparable work. (<i>PLCM Group v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) In determining a reasonable hourly rate, the Court may consider its knowledge of the local legal market, counsel's experience, skill, and reputation, the difficulty of the work performed, and evidence of prevailing rates and awards in comparable cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41; <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) In <i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, a Song-Beverly action arising out of Orange County, the court noted that a \$650 hourly rate was "not an extraordinary, high hourly fee" and, rather, was a fee "we see somewhat routinely." (Id. at p. 350.) Similarly, in <i>Goglin v. BMW of North America, LLC</i> (2016) 4 Cal.App.5th 462, a Song-Beverly action arising out of San Diego, the court found the hourly rate of \$575 to be reasonable. (Id. at pp. 473-474.) In <i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1158, the court discussed a request using Orange County hourly rates of \$415 to \$500 and required proper application of the lodestar method. Thereafter, "Civil Code section 1794 'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.'" (<i>Morris</i>, supra, 41 Cal.App.5th at p. 34 [internal quotation marks and citations omitted].) "A prevailing buyer has the burden of showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (<i>Ibid.</i> [cleaned up internal quotations].) The Court considers whether the case was overstaffed and whether the time spent on particular tasks was reasonable. Inefficient, duplicative, or excessive work need not be compensated. (<i>Morris</i>, supra, 41 Cal.App.5th at p. 38.)